IN THE SUPREME COURT OF INDIA

GENDER JUSTICE & WORKPLACE RIGHTS JURISDICTION

(Full Bench (3 Judges))

CASE NUMBER: Writ Petition (Crl.) Nos. 666-70 of 1992 **CNR: SCIN010006661992**

REPORTABLE CITATION: (1997) 6 SCC 241 DATE: August 13, 1997

CORAM: Hon'ble J.S. Verma, C.J., Sujata V. Manohar, B.N. Kirpal, JJ.

Vishaka and Others v. State of Rajasthan and Others

Vishaka and Others ...PETITIONER(S)

VERSUS

State of Rajasthan and Others ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Constitution of India, CEDAW | Sections: Article 14, Article 19(1)(g), Article 21, Article 32

Framed binding judicial guidelines to prevent and address sexual harassment of working women at workplaces under Articles 14, 19, and 21, in the absence of enacted legislation. Mandated that every workplace must create an Internal Complaints Committee and take concrete preventive measures against sexual harassment.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

Each incident of sexual harassment of a woman at workplace results in violation of the fundamental rights of Gender Equality and the Right of Life and Liberty. In the absence of legislative enactments to provide for effective enforcement of the basic human right of gender equality, guidelines and norms are hereby specified for due observance at all workplaces.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Binding Workplace Guidelines Enacted (Outcome: Allowed)

Precedential Authority: Good Law (Codified into POSH Act, 2013)

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`Section 65B IEA / Section 63 BSA • Immutable Repository Authority Record`